



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/14/2026 - 09:00 AM

08/04/2026

10:28 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

NO APPEARANCE

Having reviewed the status reports of attorneys Hoops and Orr, the Order to Show Cause is CONTINUED to January 12, 2027 at 9:00 am for status of the filing of YuZhe Han's Proof of Completion of Conservator Education Class. Upon the Court's receipt of this proof, the Court intends to dismiss the Order to Show Cause and discharge Mr. Hoops as counsel for the conservatee.

25-PRO-01259	Guardianship of Byron Antonio Monterroso Chanax	Continued on 03/11/2026 Continued on 03/11/2026
Line 6, 7	Petitioner: Monterroso Cal, Erick Rolando (CHOLAKHYAN, MHER) Ward: Monterroso Chanax, Byron Antonio Proposed Guardian: Monterroso Cal, Erick Rolando	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings

Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

As all previous deficiencies having been cured, the court is prepared to GRANT both petitions, as well as dispense with notice to the mother, and maternal grandmother and paternal grandfather.



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25-PRO-01447	IN THE MATTER OF THE AUGUSTA H. MCPHERSON REVOCABLE TRUST DATED MAY 6, 1999	RE: Petition for Relief for Undue Influence and Status of Accounting for the Augusta H. McPherson Revocable Trust
Line 8	Petitioner: Bailin, Lorraine Judith (MARTIN, JOHN C. FRAZEE, AMY E.) Decedent: McPherson, Augusta H. Respondent: Mordecai, Pamela Ruth (CUMMINS, JAMES R. KANDA, AYA)	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED

The Court will address the following issues at the hearing:

POS filed by Mr. Nino for amended petition served electronically does not list the email address to which it was delivered. As such, the court does not accept it. However, there is a POS for delivery via mail of the amended petition to Respondent individually, and in her capacity as trustee of the McPherson Trust, reflecting a date of July 16, 2026. As such, Respondent Trustee of the McPherson Trust has 120 days from the legal date of service in which to comply with Judge Garratt's order to file and serve and accounting.

There is no filed copy of Respondent's declaration [although an unfiled copy is attached to Petitioner's "objection" filed 8/12/2026] as to when she began acting as trustee of the McPherson Trust. Respondent is to advise the court as to why the declaration was not filed with the court, as was ordered by Judge Garratt. The court reminds all parties that failure to comply with court orders is subject to sanctions and potential contempt.

As it relates to the aforementioned objection and request for evidentiary hearing, which Petitioner's counsel set for today's date, that is obviously not timely for what the Court deems as a new petition seeking relief. As such, the court is going to deny such request for hearing. But more significantly, a separate hearing on that discreet issue would not be an efficient use of court resources, as this is obviously a primary issue which can and should be addressed through discovery on the amended petition and at the time that any hearing on said amended petition would occur.

Pamela Mordecai, as trustee of the Fisher Trust, is ordered to appear and advise the court if she is representing herself, or if she has retained counsel.

Petitioner still needs to serve the Amended Petition on the Pamela Mordecai, as trustee of the Fisher Trust.